

Based on the foregoing, Cakebread's request for an award of monetary sanctions is GRANTED IN PART; Christopher L. Burrows, as counsel of record for Plaintiff, is ordered to remit to Cakebread no later than 30 days after entry of the instant order, monetary sanctions in the amount of $(\$260/\text{hr.} \times 8\text{hrs.}) + \$1,000 = \$3,080$.

Finally, while both parties discuss, through their respective briefs, ongoing difficulty in scheduling Plaintiff's deposition, neither the April 24, 2026, Motion to Compel, nor the Notice of Motion of the instant motion formally requests the Court's intervention in that dispute. As such, issues relating to the scheduling of that deposition are not formally before the Court on the instant Motion.

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Wells Fargo Bank, N.A. v. Isabella A Bottarini

26CV000621

MOTION FOR AN ORDER DEEMING THE TRUTH OF THE MATTERS SPECIFIED IN PLAINTIFF'S REQUEST FOR ADMISSIONS AS ADMITTED

TENTATIVE RULING: The motion is GRANTED.

Plaintiff, Wells Fargo Bank, N.A. moves, pursuant to Code of Civil Procedure sections 2033.010, 2033.020, 2033.250, 2033.280, and 2033.420, for an order deeming admitted the truth of matters specified in the Request for Admissions propounded on Defendant, Isabella A Bottarini.

A. FACTUAL FINDINGS

Based on the evidence submitted in support of the motion, the Court finds as follows.

1. On May 26, 2026, Plaintiff propounded on Plaintiff Ms. Bottarini Requests for Admissions - Set One (Requests). (See Declaration of Edgar B. Lopez at ¶ 2-3, Exhs. 1.) (Lopez Decl.).)
2. The Requests were served on Ms. Bottarini by mail at her address of record in the action. (See *id.* at Exh. 1.)
3. Ms. Bottarini's responses to the Requests were due on or before June 30, 2026. (See Cal. Code Civ. Proc., § 2033.250.)
4. As of the filing of the present motion, Ms. Bottarini had not responded in any manner to the Requests and had not requested any extension of the deadline for responding. (See Lopez Decl. at ¶ 5.)

Plaintiff appears to concede the foregoing by failing to file anything in opposition to the motion.

B. LEGAL ANALYSIS

Where “a party to whom requests for admission are directed fails to serve a timely response . . . [t]he requesting party may move for an order that the genuineness of any documents and the truth of any matters specified in the requests be deemed admitted, as well as for a monetary sanction...” (Code Civ. Proc., § 2033.280, subd. (b).) “The court shall make this order, unless it finds that the party to whom the requests for admission have been directed has served, before the hearing on the motion, a proposed response to the requests for admission that is in substantial compliance with Section 2033.220.” (*Id.* at subd. (c).)

It is mandatory that the court impose a monetary sanction under Chapter 7 (commencing with Section 2023.010) on the party or attorney, or both, whose failure to serve a timely response to requests for admission necessitated this motion.” (*Id.* at subd. (c).)

Because Plaintiff failed to serve a timely response to the Requests for Admissions, either prior to the filing of the motion or before hearing on the motion, Defendant is entitled to an order deeming genuine all documents identified in the requests and further deeming admitted all matters specified in the requests.

Based on the foregoing, the motion is GRANTED.

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Okell Holdings, LLC et al v. Quantum Limited Partners, LLC et al 26CV001310

MOTION BY DEFENDANTS TO COMPEL ARBITRATION AND STAY ACTION

TENTATIVE RULING: The motion is GRANTED. The Court will sign the Proposed Order. A Review Hearing Re: Status of Arbitration is set for March 4, 2027 at 8:30 a.m. in Dept. A. The Case Management Conference on December 1, 2026 is VACATED.

Defendants Quantum Limit Partners, LLC, Glenn C. Rice, and Cynthia Anne Hoy (erroneously sued as Cynthia Rice) (“Defendants”) move, pursuant to the California Arbitration Act (Code Civ. Proc. §§ 1281.2, 1281.4) and the Federal Arbitration Act (9 U.S.C. §§ 3, 4), for an order (i) compelling arbitration of the six causes of action set forth in Plaintiffs’ Verified Complaint and (ii) staying this action pending completion of the arbitration.

Plaintiffs filed a Limited Opposition, in which they state they “do not oppose arbitration of the substantive claims alleged in the Verified Complaint. This limited opposition concerns only the scope of the requested stay and seeks confirmation that any order compelling arbitration preserves this Court’s authority, pursuant to the parties’ Settlement Agreement and Code of Civil Procedure section 1281.8, to consider future requests for provisional relief in aid of arbitration.” (Opp., 1:22-26.) Plaintiffs request that “[a]ny order compelling arbitration should expressly preserve this Court’s jurisdiction . . . to consider any future request for provisional relief in aid of arbitration. Accordingly, the stay should not preclude either party from seeking such relief if the statutory standard is satisfied.” (Opp., 5:10-13.)